

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jennifer Smith	Team: Squad #07	CCRB Case #: 201805257	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/20/2018 2:15 PM	Location of Incident: In front of 754 Myrtle Avenue; 79th Precinct stationhouse	18 Mo. SOL 12/20/2019	Precinct: 79		
Date/Time CV Reported Wed, 06/20/2018 11:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/02/2018 11:04 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Leo Bonacasa	12994	955762	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Greydy Mercedes	09619	956926	079 PCT
2. POM Nicola Apadula	26616	954496	079 PCT
3. SGT Mark Delossantos	03955	951672	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Leo Bonacasa	Abuse: In front of 754 Myrtle Avenue in Brooklyn, Police Officer Leo Bonacasa stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Leo Bonacasa	Abuse: In front of 754 Myrtle Avenue in Brooklyn, Police Officer Leo Bonacasa searched the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Leo Bonacasa	Abuse: In front of 754 Myrtle Avenue in Brooklyn, Police Officer Leo Bonacasa damaged § 87(2)(b) s property.	C . Unfounded
D . POM Leo Bonacasa	Abuse: In front of 754 Myrtle Avenue in Brooklyn, Police Officer Leo Bonacasa seized § 87(2)(b) s property.	D . Substantiated
E . POM Leo Bonacasa	Discourtesy: At the 79th Precinct stationhouse, Police Officer Leo Bonacasa spoke discourteously to § 87(2)(b)	E . Unsubstantiated

Case Summary

On June 20, 2018, § 87(2)(b) called IAB and filed this complaint, which the CCRB received on July 2, 2018.

On June 20, 2018, at approximately 2:18 p.m., Police Officer Leo Bonacasa, an Anti-Crime officer of the 79th Precinct, stopped § 87(2)(b) in his vehicle in front of 754 Myrtle Avenue in Brooklyn (**Allegation A: Abuse of Authority, exonerated**). PO Bonacasa searched § 87(2)(b)'s vehicle (**Allegation B: Abuse of Authority, exonerated**) and allegedly damaged the inside of § 87(2)(b)'s vehicle during that search (**Allegation C: Abuse of Authority, unfounded**). No arrest or summons resulted from that incident, but when PO Bonacasa left the scene, he drove away with § 87(2)(b)'s car keys (**Allegation D: Abuse of Authority, substantiated**). § 87(2)(b) drove to the 79th Precinct stationhouse after that, and saw PO Bonacasa inside the stationhouse, who allegedly spoke discourteously to him there (**Allegation E: Discourtesy, unsubstantiated**).

Sergeant Mark De Los Santos, Police Officer Nicola Apadula, and Police Officer Greydey Mercedes, of the 79th Precinct, and § 87(2)(b)'s cousin, § 87(2)(b) driving a separate vehicle, witnessed this incident.

PO Bonacasa's body-worn camera (01 Board Review) and PO Apadula's body-worn camera (02 Board Review) captured the incident in front of 754 Myrtle Avenue, but not the alleged incident in the 79th Precinct stationhouse.

Findings and Recommendations

Allegation A – Abuse of Authority: In front of 754 Myrtle Avenue in Brooklyn, Police Officer Leo Bonacasa stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B – Abuse of Authority: In front of 754 Myrtle Avenue in Brooklyn, Police Officer Leo Bonacasa searched the vehicle in which § 87(2)(b) was an occupant.

Allegation C – Abuse of Authority: In front of 754 Myrtle Avenue in Brooklyn, Police Officer Leo Bonacasa damaged § 87(2)(b)'s property.

It is undisputed that PO Bonacasa was the only officer to search § 87(2)(b)'s vehicle. It is undisputed that § 87(2)(b) was never issued any summons during this incident.

§ 87(2)(b) (03 Board Review) said he was driving behind his cousin, § 87(2)(b) in his black, four-door, Lexus sedan with an Alabama license plate, on Nostrand Avenue in Brooklyn. He drove straight through the intersection of Nostrand Avenue and Myrtle Avenue, put his hazard lights on, pulled into the left shoulder lane (without using any turn-signal), and stopped in front of the Duane Reade at 754 Myrtle Avenue. § 87(2)(b) stopped his vehicle in front of § 87(2)(b). PO Bonacasa ordered § 87(2)(b) to produce his license and registration, which § 87(2)(b) did, and PO Bonacasa returned to his vehicle. PO Bonacasa returned to § 87(2)(b)'s vehicle approximately one minute later, and said he smelled marijuana. § 87(2)(b) had no marijuana in his vehicle. § 87(2)(b) had not smoked marijuana that day, he had not smoked marijuana in his vehicle that day, and he had not driven his vehicle for 24 hours prior to this incident. § 87(2)(b) had three cigarette butts in his ash tray. PO Bonacasa ordered § 87(2)(b) to exit his vehicle, which he did. § 87(2)(b) told PO Bonacasa that he could search his vehicle if he wanted to. § 87(2)(b) stood at the rear of his vehicle while PO Bonacasa searched it for approximately two minutes. PO Bonacasa ordered § 87(2)(b) to get back into the vehicle, which § 87(2)(b) did. PO Bonacasa ordered § 87(2)(b) to produce his car keys. § 87(2)(b) gave PO Bonacasa his car keys, and PO Bonacasa went to § 87(2)(b)'s trunk, opened the trunk with § 87(2)(b)'s keys, and searched the trunk. At that point, PO Bonacasa determined that no marijuana was inside § 87(2)(b).

§ 87(2)(b)'s vehicle and § 87(2)(b) was free to leave. PO Bonacasa and the other officers left the scene. PO Bonacasa took § 87(2)(b)'s keys with him § 87(2)(g). While § 87(2)(b) waited for his keys, he observed that his glove compartment was broken as well as the back pouch of his passenger seat – both were allegedly “ripped off,” and on the ground. § 87(2)(b) said he paid \$550 in repairs for the damage. § 87(2)(b) did not provide photographs of the damage or a receipt for the damage. When the investigation contacted § 87(2)(b) on February 21, 2019, regarding the damage to his vehicle, he said he never fixed the damage and that he would send photos, but he never did.

In § 87(2)(b)'s IAB complaint (14 Board Review), he reported that the bottom panel of his glove compartment was entirely ripped off, and so was the passenger backseat pocket. § 87(2)(b) said the seat pocket was completely pulled off, with the “springs and clamps” showing.

§ 87(2)(b) (04 Board Review) said he got out of his vehicle when PO Bonacasa stopped § 87(2)(b) and he watched the entire interaction from approximately 10 feet away. § 87(2)(b) said § 87(2)(b) had a rolling papers and a marijuana cigarette butt in his ash tray.

PO Bonacasa (05 Board Review) said he observed § 87(2)(b) change lanes twice without signaling while driving on Nostrand Avenue in Brooklyn. PO Bonacasa said he smelled marijuana while he was approaching § 87(2)(b)'s vehicle. PO Bonacasa saw marijuana crumbs on the floor of the vehicle when he approached § 87(2)(b)'s driver's side. PO Bonacasa asked § 87(2)(b) to exit the vehicle, and § 87(2)(b) stood with Sgt. De Los Santos by the trunk of the vehicle while PO Bonacasa searched the inside. PO Bonacasa searched inside the glove compartment and the car seat pockets and never observed anything to be broken before or after his search, though § 87(2)(b)'s car generally appeared “beat up” with car parts “all over the place.” PO Bonacasa asked for § 87(2)(b)'s car keys so that he could search § 87(2)(b)'s trunk, of which the button to open it was broken, so it required a key. PO Bonacasa used the key to open the trunk and found nothing inside after searching the trunk. At PO Bonacasa's discretion, PO Bonacasa issued § 87(2)(b) a warning, instead of issuing him summonses for the marijuana and the traffic violation. PO Bonacasa explained to § 87(2)(b) that he found a marijuana cigar butt in his ashtray and marijuana crumbs on his floor. PO Bonacasa left the scene with § 87(2)(b)'s keys, though at that time he was unaware that he had them § 87(2)(g).

PO Bonacasa's body-worn camera footage captures him finding rolling papers at 0:38 in the driver's side door pocket. The driver's side floor is also visible at 0:38. The floor appears dirty with crumbs, but whether those crumbs are marijuana cannot be determined from the video. PO Bonacasa puts the rolling papers back in § 87(2)(b)'s driver's side door pocket at 0:47. § 87(2)(b)'s ash tray is visible at 0:56. Two cigarette butts are visible and a small brown item that could potentially be the butt of a marijuana cigar or cigarette. At 1:25, PO Bonacasa says to § 87(2)(b) (standing at the trunk of the car), “Alright. You have two clipped blunts in your ashtray.” § 87(2)(b) says, “It's just paper. It ain't nothing in there.” PO Bonacasa says, “There is. Because I just smelled it in there. Are you going to keep doing this or are you going to let us do our job? Because we're not going to bring you in for the weed.” At 2:05, PO Bonacasa is seen searching § 87(2)(b)'s glove compartment and at 3:40, he is seen searching the seat pocket behind the passenger seat. PO Bonacasa is seen briefly searching with his right hand inside both compartments, and does not appear to damage either compartment. No sounds can be heard (such as snapping, or ripping) that suggest PO Bonacasa broke either compartment. The glove compartment is visible again at 2:41. The seat pocket is visible again at 3:57. There are no apparent damages that can be seen on the video. At 5:19, PO Bonacasa tells § 87(2)(b) (standing again at the trunk), “I found three clipped blunts in this car. Along with weed sprinkled on the

§ 87(2)(g) It is therefore recommended that **Allegation C** be *unfounded*.

Allegation D – Abuse of Authority: In front of 754 Myrtle Avenue in Brooklyn, Police Officer Leo Bonacasa seized § 87(2)(b) s property.

It is undisputed that PO Bonacasa left the scene without returning § 87(2)(b) s car keys. § 87(2)(b) said that after PO Bonacasa searched his trunk, he said he found no marijuana and returned § 87(2)(b) s driver’s license and registration. PO Bonacasa went back to his vehicle and drove away without saying anything more to § 87(2)(b) about the vehicle stop or a summons. § 87(2)(b) immediately called 911 and reported that PO Bonacasa drove away with his keys. Approximately one hour later, PO Bonacasa returned with § 87(2)(b) s car keys.

PO Bonacasa said he inadvertently took § 87(2)(b) s keys because he received a job for an incident involving a firearm, after deciding to let § 87(2)(b) off with a warning. PO Bonacasa had taken the keys to open § 87(2)(b) s trunk. PO Bonacasa realized he had § 87(2)(b) s car keys in his pocket while he was canvassing for the firearm job. He returned § 87(2)(b) s keys after he finished that job with Sgt. De Los Santos. PO Bonacasa explained to § 87(2)(b) that he received a job involving a firearm. PO Bonacasa apologized to § 87(2)(b) who was calm, and he left the scene. PO Bonacasa’s memo book entries (18 Board Review) from the date of the incident are consistent with his statement – showing that he responded to a job involving a firearm immediately after the incident with § 87(2)(b) and returning to the location of § 87(2)(b) s vehicle stop immediately after completing the job involving the firearm.

Sgt. De Los Santos’ statement was generally consistent with PO Bonacasa’s statement. Sgt. De Los Santos’ memo book (19 Board Review) also reveals that the officers responded to a job involving a firearm immediately after the incident with § 87(2)(b).

The 911 summary (15 Board Review) reveals that § 87(2)(b) called 911 at 2:33 p.m., reporting that PO Bonacasa took his keys. The summary reveals that PO Bonacasa and Sgt. De Los Santos returned § 87(2)(b) s keys at 2:56 p.m.

NYPD Patrol Guide, Procedure 203-09 (16 Board Review) states that officers should be courteous and respectful when in contact with the public.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be *substantiated*.

Allegation E - Discourtesy: At the 79th Precinct stationhouse, Police Officer Leo Bonacasa spoke discourteously to § 87(2)(b)

§ 87(2)(b) said that after PO Bonacasa returned his keys, he drove to the 79th Precinct stationhouse to file a complaint about the incident. While he was waiting to file his complaint, he saw PO Bonacasa in the civilian waiting area of the stationhouse. § 87(2)(b) told PO Bonacasa that he was at the stationhouse to file a complaint against him for taking his keys and for damaging his car. PO Bonacasa allegedly said, “You know your car was a piece of shit.” § 87(2)(b) reiterated that his car was not damaged prior to the search. PO Bonacasa replied, “Yes it was. That old car was a piece of shit anyway.” PO Bonacasa asked § 87(2)(b) why he was filing

a complaint because § 87(2)(b) had already called 911 and reported PO Bonacasa for taking his car keys. § 87(2)(b) reiterated that he was going to file his complaint. PO Bonacasa said, “I should have arrested you for the weed. I found weed sprinkles and three blunts in the ash tray.” § 87(2)(b) invited PO Bonacasa to search his vehicle again, and PO Bonacasa walked to an area in the stationhouse where § 87(2)(b) could not see him. § 87(2)(b) never interacted with PO Bonacasa again. No officers were alleged to have witnessed this interaction in the waiting area. § 87(2)(b) said a civilian, § 87(2)(b) witnessed the conversation. § 87(2)(b) did not know § 87(2)(b) but he obtained her phone number during the incident and provided it to the investigation. § 87(2)(b) was given a civilian complaint form to file his complaint at the stationhouse, but he decided to leave the stationhouse and call IAB because the wait was too long. § 87(2)(b) said that he drove with § 87(2)(b) to the stationhouse and waited outside in his car. § 87(2)(b) never entered the stationhouse, but saw § 87(2)(b) talking to PO Bonacasa inside of the stationhouse. § 87(2)(b) called § 87(2)(b) who put § 87(2)(b) on speaker phone to listen to his conversation with PO Bonacasa. § 87(2)(b) did not remember their conversation and whether PO Bonacasa told § 87(2)(b) that his car was a “piece of shit.”

§ 87(2)(b) was unavailable to the investigation (see IAs for contact attempts).

PO Bonacasa denied having any further interaction with § 87(2)(b). PO Bonacasa said he was made aware that § 87(2)(b) had appeared at the stationhouse to file a complaint against him, but PO Bonacasa never saw § 87(2)(b) at the stationhouse nor did he interact with him at the stationhouse. PO Bonacasa was informed by an officer whom he could not remember, that § 87(2)(b) was given paperwork to file a complaint against PO Bonacasa.

Sgt. De Los Santos was not alleged to have witnessed this incident, but he said that both he and PO Bonacasa spoke to § 87(2)(b) in the stationhouse. He acknowledged that § 87(2)(b) told PO Bonacasa that he was at the stationhouse to file a complaint specifically against PO Bonacasa. Sgt. De Los Santos denied hearing PO Bonacasa use profanity toward § 87(2)(b).

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§ 87(2)(g) it is recommended that **Allegation E** be *unsubstantiated*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (11 Board Review).
- PO Bonacasa has been a member-of-service for five years, and has been a subject in one CCRB complaint and two allegations, neither of which was substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this search.
- As of January 31, 2019, the New York City Office of the Comptroller had no record of a Notice of Claim being filed regarding this complaint (12 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 7

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date